

STANDING ORDER NO. 328 / 2010

GUIDELINES REGARDING MOTOR ACCIDENTS CLAIM TRIBUNAL

1. According to section 158 (6) of Motor Vehicles Act, 1988, it is mandatory for the police (Investigating Officer) to send the **Accident Information Report** to the concerned Motor Accident Claims Tribunal (MACT) within **30 days** of registration of the FIR. Copies of the Accident Information Report are also required to be sent to the insurer and the owner of the offending vehicle within the same time period. The Hon'ble Supreme Court of India in their order dated 9.7.2007 in writ petition (C) No. 282 of 2007 "General Insurance Council & others vs State of Andhra Pradesh and others have specifically directed that the report should be sent within the shortest possible time but not later than 30 days of registration of FIR. The Hon'ble Supreme Court further observed that "the Motor Vehicles Act, 1988 is a beneficent/benevolent piece of legislation seeking to provide quick monetary compensation to the persons who sustain bodily injury/disablement permanent or partial or to the legal heirs of the persons who die or sustain fatal injuries due to the use of motor vehicles in a public place."
2. This Accident Information Report was originally supposed to be sent to MACT in the proforma prescribed in Form 54 of the Central Motor Vehicle Rules, 1989. However, the Hon'ble High Court of Delhi vide order dated 8.6.09 (FAO 842/2003) Rajesh Tyagi & Ors. vs Jaibir Singh & Ors, modified Form 54 by adding four new columns to the existing proforma. The Accident Information Report should now be sent by the Investigating Officer in this modified proforma given at **Annexure 'A'**.
3. In this order, the Hon'ble High Court of Delhi has also directed that the Accident Information Report shall be accompanied by attested copies of the FIR, site plan, photographs, registration cover, driving licence, insurance policy, permit and fitness certificate of the offending vehicle. MLC and post-mortem report shall be submitted as soon as they are received. If any of the aforesaid information or document is not available at the time of submitting the AIR, the same be submitted as soon as the same is received.
4. In the same order the Hon'ble High Court of Delhi has further directed that simultaneously upon filing of AIR by the SHO with the Motor Accident Claims Tribunal, the copy of the AIR be also furnished to the insurance company along with the aforesaid documents. The four nationalized companies, i.e. New India Assurance Company Ltd., Oriental Insurance Company Ltd., United India Insurance Company Ltd. and National Insurance Company Ltd. have set up a centralized Cell at Oriental House, A-25/27, Asaf Ali Road, New Delhi-110002

for receiving AIR. The police shall, therefore, send the copy of the AIR (modified Form 54) along with accompanying documents to these insurance companies at the aforesaid address.

5. If a part of the information required to be given in the proforma is not available, the report under the modified Form 54 with accompanying documents shall nevertheless be sent to the court with copies to the insurer and owner of offending vehicle within the stipulated period of 30 days. However, IOs shall cite reasons for non availability of part of the information documents in the relevant columns in the proforma. Efforts being made to collect the same shall be mentioned in the action taken column at Sl. No: 13 of the proforma. Thereafter, concerted efforts shall be made to obtain the requisite information and furnish the same to the court with copies to the insurer and the owner of the offending vehicle at the earliest. Various circumstances under which information may not be available are listed at **Annexure-'B'**. The course of action to be taken by the IO is also suggested. However, this list is not exhaustive and IOs may take action as required in consultation with supervisory officers.
6. In the same order quoted above, the Hon'ble Delhi High Court has accepted the following monitoring mechanism formulated by Commissioner of Police, Delhi to ensure compliance:
 - (i) Maintenance of register at the police station indicating the FIR NO., date of registration of case, date of despatch of Form 54 to the MACT, insurer and owner of offending vehicle. A column containing details of information not included in Form 54 along with reasons for its non availability shall also be maintained in this register. Format of the register is enclosed at **Annexure 'C'**.
 - (ii) A copy of the FIR shall be sent to the Claims Tribunals on the date of registration (within 24 hours).
 - (iii) In the Index of all FIRs pertaining to accident cases a noting shall be made in '**red ink**' indicating the date on which the report in Form 54 has been sent to MACT, owner of offending vehicle and insurer. This will enable easy checking by supervisory officers.
 - (iv) Officers conducting six monthly inspections of police stations shall mandatorily check AIR (modified Form 54) despatch records during the course of the inspection and reflect it in the inspection report.
 - (v) No accident case shall be finalized and put in court unless information as required to be submitted in modified Form 54 of the Central Motor Vehicle Rules 1989 has been duly sent to the MACT, owner of offending vehicle and insurer. The SHO shall

not sign a final report and the ACP shall not forward the same unless the requirements of the MACT, Hon'ble Courts and the Standing Order are complied with.

- (vi) An MACT Monitoring Cell headed by an Inspector will function in each district to monitor delivery of AIR (modified Form 54) and other action to be taken as per directions of the Hon'ble Courts/Standing Order in time.
- (vii) The ACP/PG Cell (Incharge of MACT Monitoring Cells) in a district shall meet with the presiding judge of the claims tribunals on a monthly basis and apprise them of action being taken by the police, problems, if any and also ascertain whether the courts are satisfied regarding compliance of the provision of 158(6) MV Act and directions of the Hon'ble Supreme Court of India and Delhi High Court.
- (viii) A Naib court shall be appointed in each Motor Accident Claim Tribunal by the District DCsP.
- (ix) The District DCsP shall review the pendency of modified Form 54 and other action to be taken in the weekly law and order meetings.
- (x) Monitoring of timely delivery of AIR (modified Form 54) through new computerized system of police station. This system enables:
 - (a) At the time of registration of an accident case, it is made mandatory that an initial entry will be made on the website and AIR number will be generated. This AIR number will be recorded in the FIR of the accident. This will ensure that the website will contain the information about all the cases of accidents registered in Delhi.
 - (b) The monitoring module will generate alert e-mails for the senior officers from the rank of SHO to Joint CP/Ranges. The e-mail will include all those accident cases wherein the complete information is not uploaded on the computerized system, so that remedial measures can be taken.
- (xi) The AIR (modified Form 54) shall be updated on the website so that it can be downloaded by the claims tribunals, insurance companies and claimants.
- (xii) A checklist board shall be placed in the room of each SHO indicating the important matters requiring his day-to-day attention. This list shall include implementation of court's directives in D.K. Basu case, MACT guidelines, JJ Act guidelines, Missing persons guidelines, Court appearance, etc. etc. **(Annexure D).**

- (xiii) Pilot projects shall be initiated in East, South-West & North-West districts to have fatal accident cases exclusively investigated by a District Accident Investigation Cell. These cells shall start working immediately round the clock as a pilot project. Officers shall be drawn from other police stations and posted to these Cells under the supervision of an Inspector.

All SHOs and supervisory officers including ACP Sub-Division, ACP Incharge of MACT monitoring Cell, District DCsP and Jt.CsP Ranges shall ensure through this monitoring mechanism that the Accident Information Report (AIR) is sent within the prescribed time limit of 30 days to MACT, Insurer and owner of the offending vehicle.

7 (I) NODAL OFFICER TO COORDINATE WITH INSURANCE COMPANIES

In accordance with the orders of the Hon'ble High Court of Delhi dated 5.11.2009, Joint CP/Northern Range has been appointed as Nodal Officer to coordinate with the representatives of the insurance companies. He shall convene monthly meeting with them, which will also be attended by the District DCsP. All the insurance companies shall submit their grievances relating to non-compliance of Section 158(6) of Motor Vehicles Act in the said meeting and Delhi Police shall redress the same within a fortnight. Minutes of such monthly meeting between the Joint Commissioner of Police and the insurance companies be placed on record by Delhi Police and the same shall be considered by the hon'ble court.

(II) The Hon'ble Supreme Court of India has also directed that "*Periodical checking shall be done by the Inspector General of Police concerned to ensure that the requirements are being complied with. In case there is non-compliance, appropriate action shall be taken against the erring officials*". It is, therefore, essential that SHOs should ensure that the relevant forms are sent on time and acknowledgement of the receipt by the MACT, owner of offending vehicle and insurer is also taken and put in record. A monthly report of compliance in sending modified Form 54 should be sent to the ACP incharge Sub-Division, District DCP and Joint CP/Range. It shall be the responsibility of the ACP, Incharge Sub-Division to check the accident cases registered in the police stations and ensure despatch of modified Form 54 within the stipulated time to the MACT, owner of offending vehicle and insurer during their visits to the police stations. The District DCsP should also check the same from time to time. Periodic checking shall be done by the Joint CsP/Ranges concerned to ensure that requirements are being complied with. In case there is non compliance, appropriate action shall be taken against the erring officials as directed in the Apex Court order dated 09.07.2007.

8. In case the owner of vehicle and the insurer are not located in Delhi, the relevant documents may be sent vide registered post with acknowledgement due and the receipt of the same may be fixed in the register as proof of dispatch.
9. Most of the information required to be furnished in modified Form 54 has to be provided by the vehicle owner/driver. At times, under one pretext or the other some information is not being furnished. The IO, Inspector (Investigation) and SHO shall vehemently oppose the release by the court of any vehicle on superdari on the grounds that information required to be submitted to the MACT in Form 54 has not been furnished and press before the hon'ble court that no orders for releasing of vehicle be passed unless such information is made available to the police. While doing so, the directions of the Hon'ble Supreme Court of India may also be brought to the notice of the concerned court.

This supersedes the previous Standing Order No. 328/09 issued vide No.12551-12801/Record Branch/PHQ/AC-I dated 2-7-09 and addendum issued vide No. 21701-800/Record Branch/PHQ/AC-I dated 25.11.2009



(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi

O.B. No. 74 /RB/PHQ dated 25/10/2010.

No. 11801-12050 /Record Branch/PHQ/AC-I, dated, Delhi the, 25/10/10

Form 54
[Rule 150 (a) and (2)]
ACCIDENT INFORMATION REPORT

1. Name of the Police Station
2. CR No. / Traffic Accident Report
3. Date
4. Name and full address of the injured/deceased
5. Name of the hospital to which he/she was removed
6. Registration number of vehicle and the type of the vehicle
7. Driving Licence particulars:
 - (a) Name and address of the driver
 - (b) Driving licence number and date of expiry
 - (c) Address of the issuing authority
 - (d) Badge No. in case of public service vehicle
8. Name and address of the owner of the vehicle at the time of the accident
9. Name and address of the insurance company with whom the vehicle was insured and the particulars of the divisional officer of the said insurance company
10. Number of insurance policy / insurance certificate and the date of validity of the insurance policy / insurance company
11. Registration particulars of the vehicle (class of vehicles)
 - (a) Registration No.
 - (b) Engine No.
 - (c) Chassis No.
12. Routine permit particulars
13. Action taken, if any, and the result thereof
14. In case of death (Name and address of the next of kin of the deceased)
15. in case of injury (Nature of injuries suffered)
16. Name and address of the eye-witnesses
17. In case of transport vehicles:
 - (a) Particulars of the permit
 - (b) Particulars of the 'fitness certificate'

ANNEXURE - B

Problems faced in completing Form 54 and suggested course of action by IOs

1. **Column No. 1,2,3,& 5:** There is no problem in filling up column Nos. 1,2,3, & 5 of form No. 54
2. **Column No. 4:** Name and full address of the injured / deceased may not be available in case the victim is unidentified or remains unidentified and unconscious in the hospital for the first 30 days. Entry may be made accordingly in Form 54.
3. **Column No. 6:** The registration number of the vehicle and type of vehicle may not be available in case of a hit and run accident.
4. **Column No. 7:** The driving licence particulars of the driver may not be available in a hit and run case or in an accident where the driver is absconding and has left the vehicle behind, or in case the driver does not possess a driving licence. There are many instances in which the driving licence of the accused is already impounded by some other agency in another case. In such cases, the driver is always given a receipt by the impounding agency from where the particulars required for column No. 7 viz. name and address of the driver, driving licence number and of expiry can be obtained. In such cases, there may be some difficulty in confirming the address of the issuing authority. However, efforts have to be made to obtain a photocopy of the licence. However, for the purpose of completing Form 54 within 30 days, in such cases a copy of the seizure memo / challan by which the licence has been impounded may be filed along with Form 54 and mentioned in the relevant column. There are cases in which licence has been lost and a new / duplicate license has not been made. In such cases a copy of the FIR / NCR of stolen / lost licence should be filed along with form No. 54 and details mentioned in relevant column. In case the driver does not possess a driving licence, it may be mentioned that he does not possess a licence. Similar action needs to be taken for column No. 7 (d) where the badge number is not available.
5. **Column No. 8:** In this column, the name and address of the owner at the time of accident is required to be filled up. There are many cases where vehicles, particularly TSRs have been sold several times without changing the registered owner of the vehicle at the Transport Authority. In such cases, it is difficult to trace the actual owner of the vehicle within a short while when such a vehicle is involved in the accident and has been abandoned by the driver who is absconding without leaving any papers in the vehicle. This information may also not be available in such cases, where driver is absconding and the vehicle is registered at an address which is not traceable or does not

exist. Till such time that the address of the actual owner is made available, name and address of the registered owner may be mentioned in this column stating that investigation is on to trace the owner. In case all the above detail are not available, then the name and details of the person who has taken the vehicle on 'Superdari' may be given in column number 8.

6. **Column No. 9 & 10:** Name and address of the insurance company with whom the vehicle is available only from the insurance papers which may or may not be available at the time of accident of the vehicle. The IO may not be able to obtain these papers for the same reasons mentioned in para No. (5) or the vehicle may also not be insured. In such cases exact reason for not providing information may be filled up in the column.
7. **Column No. 11:** Particulars required for Column No. 11 can be easily made available if the offending vehicle is available at the spot. It may be difficult in case of a hit and run accident or a stolen vehicle having tampered engine, chassis and registration number. In such a case reason for not providing information may be mentioned and actual registration engine and chassis numbers be obtained later and provided.
8. **Column No. 12:** There is no problem in obtaining route permits of the offending vehicle as this document is normally kept with the driver.

ANNEXURE - 'C'

Sl. No.	FIR No.	Date	Name of IO	Date of Receipt of Form 54 in MACT	Details of Incomplete Columns in Form 54	Reasons for Incomplete Columns	Remaining Information supplied to MACT on	Date of despatch/ receipt of Form 54 by owner/ date of despatch / receipt of remaining information	Date of despatch/ receipt of Form 54 by Insurer/ date of despatch / receipt of remaining information



CHECK LIST OF PRIORITY TASKS FOR SHOs

☞ Implementation of Court's directives:

- ☞ D.K. Basu case guidelines (S.O. No. 330/07)
- ☞ MACT cases guidelines (S.O. No. 328/08)
- ☞ Juvenile Justice Act guidelines (S.O. No. 68/08)
- ☞ Missing persons cases guidelines (S.O. No. 252/09)

☞ Court appearances (S.O. No. 73/09).

☞ Bail / remand matters.

☞ Uploading in ZIPNET – Same day UIDB, missing persons.

☞ Anti-Terrorist measures:-

- ☞ Eyes and Ears Scheme
- ☞ Meeting with RWAs/MWAs
- ☞ Checking of vulnerable markets / buildings

☞ Compliances of Inspection (formal / informal) notes.

☞ Supervision of P.I. Cases.

☞ Attending to complaints and complainants.

☞ Investigation of important and heinous cases.

☞ Cleanliness and upkeep of police station and working of the Mess.

☞ Briefing / de-briefing of Beat Staff.